the manner prescribed by the constitution? Can it be believed, that she intended to protect herself against the encroachments of her own legislature only, and to leave herself exposed to the encroachments of all her sister states? Does the language employed in these provisions of the constitution jnstify any such construction? It is general, comprehensive, and not only restrictive, but expressly prohibitory. Whatever is forbidden by the constitution of Alabama, can be done by no one, within her jurisdiction; and it was sufficient for her to know, that no bank could do any valid banking act there, without violating her constitution. It was contended, by the counsel for the banks, that no law could be regarded as declaring the policy of the state, unless it was penal; and inflicted some punishment for its violation. This doctrine is as novel as it is unfounded in principle. I know of no such exclusive rule by which to reach the mind and intention of the legislature. If the language used shows clearly that particular acts were intended to be prohibited, and the act is afterwards done, it is against the policy of the law and void. Suppose, the legislature of Alabama were to establish a bank disregarding all the conditions and restrictions imposed by the constitution; would it not violate that instrument, and therefore, the act be void? And can Georgia, Louisiana or Pennsylvania, by their respective legislatures, do in Alabama, what her own legislature cannot do? The relations which these states hold towards each other, in their individual capacity of states, under the constitution of the United States, is that of perfect independence. In the case of *Buckner* v. *Finley*, 2 Pet. 590, Chief Justice MARSHALL said, "For all national purposes embraced by the federal constitution, the states *606] and the citizens thereof are one, *united under the same sovereign authority, and governed by the same laws. In all other respects, the states are necessarily foreign to, and independent of each other." It is in this foreign and independent relation, that these four states stand before this court in these cases. The condition of Alabama, taken with a view to this relation, cannot be worse than that of an independent nation, in like circumstanstances. What that would be, we will see from authority.

"Nations being free and independent of each other in the same manner as men are naturally free and independent, the second general law of their society is, that each nation ought to be left in the peaceable enjoyment of that liberty it has derived from nature. The natural society of nations cannot subsist, if the rights which each has received from nature are not respected. None would willingly renounce its liberty; it would rather break of all commerce with those that should attempt to violate it. From this liberty and independence, it follows, that every nation is to judge of what its conscience demands, of what it can or cannot do, of what is proper or improper to be done; and consequently, to examine and determine whether it can perform any office for another, without being wanting in what it owes to itself. In all cases, then, where a nation has the liberty of judging what its duty requires, another cannot oblige it to act in such or such a manner. For the attempting this would be doing an injury to the liberty of nations. A right to offer constraint to a free person can only be invested in us in such cases, where that person is bound to perform some particular thing for us, or from a particular reason that does not depend on his judgment; or, in a word, where we have a complete authority over him." Vattel 53–4.